

PROPERTY CONSULTANT & BUYER'S AGENT AGREEMENT

THIS AGREEMENT is made on [Date] by and between:

1. Buyer's Name(s)
[Address]
[Phone Number]
[Email]
(Hereinafter referred to as "the Buyer")
2. Naidu Group Pty Ltd T/A Naidu Property Consulting Services
Level 5, Nexus Norwest
4 Columbia Ct, Norwest, NSW, 2153
admin@npcservices.com.au
(Hereinafter referred to as "the Agent")

The parties agree as follows:

Engagement, Term & Responsibilities

1. ENGAGEMENT OF AGENT

The Buyer engages the Agent to act as their exclusive representative for the purpose of identifying and acquiring real property in accordance with the terms of this Agreement.

2. TERM OF AGREEMENT

This Agreement will be effective from the date of execution and will continue until the earlier of:

- a) Ninety (90) days from the date of execution of this Agreement, during which the Agent will source and present suitable property opportunities to the Buyer; or
- b) The completion of the purchase of a property by the Buyer.

3. AGENT'S RESPONSIBILITIES

The Agent agrees to:

1	Locate & Present To locate and present to the Buyer properties that match the Buyer's criteria.
2	Advise & Evaluate Provide information and advice to the Buyer about the market, potential properties, and assist in evaluating those properties.
3	Coordinate Viewings Coordinate property viewings and inspections if necessary.
4	Negotiate Terms Negotiate the terms and conditions of any offers, including price, with the Seller or their agent on the Buyer's behalf.
5	Prepare Documents Assist the Buyer in the preparation and execution of purchase-related documents.
6	Timely Updates Provide timely updates and communications to the Buyer throughout the property acquisition process.

4. BUYER'S RESPONSIBILITIES

The Buyer agrees to:

- Provide the Agent with accurate and up-to-date information about their preferences, financial situation, and criteria for purchasing the property.
- Respond promptly to the Agent's communications and take reasonable steps to facilitate the transaction.
- Advise the Agent immediately if the Buyer becomes aware of any issues that could affect the potential property acquisition.

Fees, Commission & Key Clauses

5. AGENT'S FEES AND COMMISSION

The Buyer agrees to pay the Agent the below commission of the purchase price of any property acquired as a result of the Agent's services.

 **Initial Commitment Fee (ICF):** \$1,500.00 + GST (Non-Refundable, deducted from Final Payment from Property Purchase)

Property Purchase Price	Percentage Agent Fee + GST
Below \$650,000	1.3%
\$650,000 - \$1,000,000	1.2%
\$1,000,000 - \$2,000,000	1.1%
Above \$2,000,000	1.0%

Disclosure: If applicable, should the Buyer opt to proceed with a purchase of a property where the above-mentioned commission can be requested from a developer/builder, the Buyer will then only be charged the ICF.

The commission is payable upon completion of the purchase transaction (settlement date).

6. BUYER'S AGENT DUTY OF CARE AND DISCLOSURE

The Agent shall act in the best interests of the Buyer at all times.

- The Agent shall disclose any potential conflicts of interest, including but not limited to any relationships with property sellers, developers, or other agents, and shall provide the Buyer with all relevant information to make an informed decision.
- The Buyer acknowledges that while the Agent will use reasonable efforts to find suitable properties, the Agent does not guarantee the availability or suitability of any specific property.

7. TERMINATION OF AGREEMENT

This Agreement may be terminated by either party in writing with 14 Days' notice. Upon termination, the Buyer will:

- Pay any outstanding commission due to the Agent for services rendered up to the termination date, should it be applicable.
- Reimburse the Agent for any reasonable expenses incurred during the course of performing their obligations under this Agreement.

8. DISPUTE RESOLUTION

In the event of any dispute arising from this Agreement, the parties agree to first attempt to resolve the dispute through negotiation. If the dispute cannot be resolved through negotiation, the parties agree to submit the matter to mediation or arbitration before pursuing legal action.

9. PRIVACY AND CONFIDENTIALITY

The Agent agrees to maintain the confidentiality of the Buyer's personal and financial information. The Agent will not disclose such information to any third party unless required by law or unless the Buyer provides written consent.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties and supersedes all prior discussions, understandings, or agreements related to the subject matter hereof. Any amendments to this Agreement must be made in writing and signed by both parties.

The parties hereto have executed this Agreement as of the day and year first written above.

Buyers Name: _____

Buyers Name: _____

Buyers Signature: _____

Buyers Signature: _____

Date: _____

Date: _____

Agents Name: _____

Agent Signature: _____

Date: _____

Terms and Conditions

1.1 The client appoints (NPC Services) Naidu Property Consulting Services as their exclusive agent to perform services in respect to a property which meets the specifications provided the client, in accordance with the terms of this Agreement. NPC Services agrees to provide services to the client in consideration of the fees payable pursuant to this Agreement.

1.2 The Parties will be deemed to have accepted the terms of this agreement upon the Clients execution of this Agreement (Including Electronic Execution) or upon NPC Services receipt of any commission from the Client

1.3 The term of this Agreement will be from the date the client accepts the terms of this agreement, after which this agreement will remain enforceable until it is terminated by either party giving (14) days' notice in writing to the party, without prejudice to either party's rights accrued, or obligations incurred prior to the termination of this agreement.

1.4 The Client Agrees to:

- **1.4.1** Notify NPC Services in writing of any amendments to the personal details or property specifications of this agreement or material facts regarding the clients proposed purchase of the property.
- **1.4.2** Always Cooperate with NPC Services (including without limitation by providing instructions in a timely manner and making itself available for property inspections, if required).
- **1.4.3** Obtain Independent legal, financial, investment, tax and other advice pursuant to the Purchase (NPC Services has a panel of experts that can be recommended to client, if required)
- **1.4.4** Not purchase any property which was presented by NPC Services to the client pursuant to this agreement during the term whether verbally or in writing (including limitation properties presented to the client in person, by telephone, be email, by letter, by text message or any means of communication).
- **1.4.5** Not appoint another agent to act on its behalf for the purpose of purchasing a property during the time of the term.

1.5 The Client warrants that they have authority to enter into this agreement and has obtained all necessary authorisations and approvals to purchase property.

1.6 The Client warrants they are not subject to any earlier or concurrent agency agreement which would conflict with its obligations under this agreement.

1.7 The Client agrees to pay the commission/sign up fee to NPC Services as specified in this agreement.

1.8 The Client agrees to pay NPC Services the applicable Commission upon the earlier of:

- **1.8.1** The Client entering a contract (signing up) to view properties and to potentially purchase property and understands that this is a non-refundable fee; or
- **1.8.2** The Client purchasing or procuring that another person or entity purchases the shares in the company, if a property is owned by a company (whether or not such purchase is subject to approvals or conditions which have not been met and irrespective of whether the transfer of shares is not affected; or
- **1.8.3** The Client becomes the legal or equitable beneficial owner of a property or of the shares in the company which owns the property or by any other means whatsoever.

1.9 The Commission will also be payable where any of the matters in clause 1.8 arise at anytime within 12 months after termination of this agreement for any reason.

1.10 The Client indemnifies NPC Services for all expenses cost (including without limitation, debt collection fees, legal costs on Client's behalf) and any disbursements incurred by NPC Services in recovering any outstanding fees under this agreement.

1.11 The Client acknowledges that any data information or advice provided by NPC Services to the client in relation to the property market, properties identified and introduced during the term of this agreement is of general purpose only. The provision of any such market data does not constitute any financial or investment advice nor should it be relied upon as such. The Client acknowledges that NPC Services does not hold a financial services licence as defined in 5913B of the Corporations Act 2001 and is not authorised to provided financial services to the Client.

1.12 The Client acknowledges that the market data provided is solely for the benefit of the client and may only be relied upon by the client for the purposes of this Agreement. To the extent such market data or advice incorporates information or data from any third parties. NPC Services makes no warranties in relation to such information or data and expressly disclaims all liability in relation to such (including without limitation in relation to its accuracy, completeness, suitability and reliability).

1.13 The Client acknowledges that they are responsible for its purchasing decision and that NPC Services makes no guarantee or warranties of any kind in relation to any property. The client accepts full responsibility for satisfying itself in relation to all aspects of the property (including without limitation the building integrity, regulations which apply to the property, the neighbourhood of the property, anything arising out of or in connection with the client's decision to the purchase of the property).

1.14 NPC Services may recommend third parties to the client (without limitation conveyancers, solicitors, mortgage brokers, building or pest inspection companies, strata searchers, valuers, surveyors and any other related companies needed for the purchase of the property. The client acknowledges that all third parties are independent of NPC services and under no circumstances will NPC Services be liable for the advice, acts or omissions of such third parties. If NPC services engage any such third party on behalf of the Client, the client agrees to advance the funds to NPC Services or reimburse the costs of such to NPC services upon receipt of an invoice.

1.15 Notwithstanding any other provisions of this agreement under no circumstances will NPC Services be liable to the client for any indirect, incidental, special, consequential, aggravated, exemplary and/or punitive damages (such as those in relation to loss of revenue, profits, goodwill, intangible losses or other economic losses), nor any lost sales, lost revenue, lost profits, lost data or procurement amount however so arising.

1.16 The Client will indemnify and hold NPC Services harmless from any liabilities, actions, suits, proceedings, claims, demands, costs (including without limitation taxes or duties), loss, damage, expenses and/or other amounts of any nature (including but not limited to legal costs on a solicitor/client basis and disbursements in defending or settling the claim giving rise to same and any special, incidental, indirect, consequential, aggravated, exemplary and/or punitive damages of any type or kind such as those in relation to loss of revenue profits, goodwill, tangible or intangible losses or other economic losses arising out of or connected in any way to any breach by the client of this agreement, or arising out of the proper performance or exercise of any of the powers, duties, authorities or NPC Services under this agreement.

1.17 Each of the terms set out in this agreement is severable and independent so that if any clause (or part thereof) is void or unenforceable then that clause (or part thereof) will be deemed eliminated or modified to the minimum extent necessary to make this agreement or clause enforceable.

1.18 This agreement will be governed by and interpreted in accordance with laws pertaining to all associated states within Australia.

1.19 The Client acknowledges that this agreement constitutes as the whole agreement and supersedes all communications, negotiations, arrangements and agreements, either orally or written, made or entered into prior to the date of this agreement.